

TR!FEXTA MP3 LEASE LICENSE AGREEMENT

Non-Exclusive Beat License — Draft v1

TRANSACTION DETAILS

Licensor: TR!FEXTA

Licensee: The purchaser identified in the applicable checkout/order record

Beat: The instrumental identified in the applicable checkout/order record (the “Beat”)

License Type: MP3 Lease (Non-Exclusive)

License Fee: \$29.99 unless a different price is shown and accepted at checkout

Effective Date: The date payment is successfully completed

Order/License Reference: The applicable Snipcart/order number or other transaction identifier

1. AGREEMENT AND ACCEPTANCE

This MP3 Lease License Agreement (“Agreement”) is entered into between TR!FEXTA (“Licensor”) and the purchaser identified in the applicable order record (“Licensee”). By purchasing the MP3 Lease and completing checkout, Licensee acknowledges that Licensee has had an opportunity to review this Agreement and agrees to be bound by its terms.

Electronic acceptance and the corresponding payment/order record may be used as evidence of the transaction and the license granted.

2. GRANT OF LICENSE

Subject to full payment and compliance with this Agreement, Licensor grants Licensee a limited, non-exclusive, non-transferable license to use the Beat to create one (1) new musical composition or song by adding original vocals, lyrics, melodies, or other original material (the “New Song”).

The license is perpetual for the New Song, subject to the usage limits and other terms stated in this Agreement. The Beat may continue to be licensed to other customers.

3. FILES PROVIDED

Licensee will receive an MP3 version of the purchased Beat through the digital-delivery method associated with the order. This license does not include WAV files, stems, trackouts, project files, or other source materials unless separately stated in writing.

4. PERMITTED USES

Licensee may commercially distribute and monetize one (1) New Song incorporating the Beat.

Licensee may release the New Song through digital streaming platforms, digital download stores, physical media, and similar legitimate music-distribution channels.

Licensee may monetize the New Song on platforms such as YouTube and social-media services, subject to the Content ID restrictions below.

Licensee may perform the New Song in free or paid live performances.

Licensee may create and commercially release one (1) music video featuring the New Song.

Licensee may use reasonable excerpts of the New Song for lawful promotion, trailers, teasers, and social-media content relating to the New Song.

5. USAGE LIMITS

This MP3 Lease permits up to fifty thousand (50,000) cumulative on-demand audio streams of the New Song across streaming services.

The license permits one (1) official music video. The music video itself is not subject to a separate view cap under this Agreement, provided the New Song remains otherwise within the scope of the license.

Once Licensee reaches or reasonably expects to exceed the applicable audio-stream limit, Licensee must obtain an upgraded license from Licensor if one is then available before continuing exploitation beyond that limit.

Usage occurring before the applicable limit is reached remains authorized so long as Licensee otherwise complies with this Agreement.

6. PRODUCER CREDIT

Where credits are customarily displayed or reasonably available, Licensee must credit the producer/licensor substantially as: "Prod. by TR!FEXTA" or another producer credit supplied with the Beat.

An accidental or platform-caused omission does not automatically terminate this Agreement if Licensee corrects the credit within a reasonable time after receiving written notice.

7. OWNERSHIP AND COPYRIGHT

Licensor retains all right, title, and interest in and to the Beat and the underlying musical material owned by Licensor. This Agreement is a license and is not a sale or assignment of the Beat's copyright.

Licensee retains ownership of Licensee's original lyrics, vocals, and other independently created contributions to the New Song, subject to Licensor's continuing rights in the Beat.

Nothing in this Agreement gives Licensee ownership of the standalone Beat or the right to represent that Licensee produced or exclusively owns the Beat.

8. CONTENT ID AND AUTOMATED CLAIMING

Because this is a non-exclusive license and other artists may lawfully use the same Beat, Licensee may not register the Beat or New Song in YouTube Content ID, Meta Rights Manager, or another automated audio-fingerprinting or claiming system in a manner that generates claims against Licensor or other authorized licensees, unless Licensor gives prior written authorization.

Licensee may register and distribute the New Song through ordinary distributors and performing-rights or royalty-collection services, provided doing so does not improperly claim exclusive ownership of the Beat.

9. PROHIBITED USES

Licensee may not resell, redistribute, upload, share, sublicense, give away, or otherwise make the standalone Beat available to another person.

Licensee may not sell or license the Beat as a beat, sample pack, loop, production library asset, stock-music asset, or substantially similar standalone production asset.

Licensee may not claim exclusive rights to the Beat under this MP3 Lease.

Licensee may not use the Beat in a way that knowingly infringes another person's rights or violates applicable law.

Licensee may not transfer this license to another person or entity without Licensor's prior written consent, except that legitimate distributors and service providers may receive copies solely as necessary to distribute the authorized New Song.

10. PUBLISHING AND ROYALTIES

This Agreement does not transfer Licensor's songwriter, composer, producer, publishing, or other royalty interests, if any, arising from Licensor's contribution to the Beat or New Song.

Any applicable publishing splits, mechanical royalties, performance royalties, producer royalties, or similar rights not expressly waived in writing remain reserved. If a separate split sheet or written agreement is executed for the New Song, that document will control the specific splits it addresses.

Licensor does not claim ownership of Licensee's independently created lyrics or vocals merely because they are recorded over the Beat.

11. THIRD-PARTY MATERIAL AND SAMPLES

Neither party may knowingly represent that it owns third-party material it does not own. If the Beat contains third-party material requiring clearance and Licensor is aware of that requirement, Licensor should disclose it to Licensee to the extent reasonably practicable.

Licensee is responsible for clearing third-party material independently added by Licensee to the New Song. Nothing in this Agreement grants rights in third-party works beyond rights Licensor is legally able to grant.

12. NON-EXCLUSIVITY AND LATER EXCLUSIVE SALE

Licensee understands that this MP3 Lease is non-exclusive. Licensor may license the same Beat to other customers and may later enter into an exclusive arrangement concerning the Beat.

A later exclusive arrangement does not retroactively cancel this MP3 Lease. Licensee may continue exploiting the New Song within the terms and limits of this Agreement unless otherwise required by law or separately agreed in writing.

13. PAYMENT AND REFUNDS

The license becomes effective only after successful payment. Except where required by applicable law or expressly provided by the seller's posted refund policy, completed digital-delivery purchases are generally non-refundable once access to the licensed digital files has been provided.

A chargeback, reversed payment, fraudulent transaction, or payment cancellation may suspend the license until the payment dispute is resolved.

14. BREACH AND TERMINATION

If Licensee materially breaches this Agreement, Licensor may provide written notice describing the breach. Where the breach is reasonably curable, Licensee will have fourteen (14) days after notice to cure it.

If a material breach is not cured within that period, or if the breach is inherently incapable of cure, Licensor may terminate the license to the extent permitted by law and pursue available remedies.

Termination does not eliminate obligations or liabilities that arose before termination.

15. WARRANTIES AND LIABILITY

Each party represents that it has authority to enter into this Agreement. Licensor represents only that Licensor has the right to grant the rights in the Beat that are expressly granted here, subject to any disclosed third-party rights.

To the fullest extent permitted by applicable law, neither party will be liable to the other for indirect, incidental, special, or consequential damages arising solely from this Agreement, except where such a limitation is prohibited by law or would conflict with obligations that cannot legally be limited.

16. INDEMNIFICATION

To the extent permitted by law, each party agrees to be responsible for third-party claims, losses, or reasonable costs arising from that party's own breach of this Agreement, infringement caused by material independently supplied by that party, or unlawful conduct.

17. GOVERNING LAW AND U.S. SALES

This Agreement is intended for use in online sales to customers throughout the United States. It will be governed by the laws of the Commonwealth of Pennsylvania, without regard to conflict-of-law principles, together with applicable United States federal law.

Nothing in this Agreement waives consumer protections or other rights that applicable law does not permit the parties to waive.

18. GENERAL TERMS

This Agreement, the applicable checkout/order record, and any incorporated terms expressly presented to Licensee at purchase constitute the agreement concerning this MP3 Lease. A later written agreement signed or electronically accepted by both parties may modify these terms.

If any provision is found unenforceable, the remaining provisions will remain in effect to the fullest extent permitted by law.

A failure to enforce a provision on one occasion does not permanently waive that provision.

Headings are for convenience and do not change the meaning of the Agreement.

19. CONTACT

Questions concerning this license may be directed to TR!FEXTA through the contact information published on trifexta.net or the customer-support address identified in the applicable order materials.

IMPORTANT DRAFT NOTE

This is Draft v1 of TR!FEXTA's MP3 Lease. Before using it for live commercial transactions, the formal legal identity of the rights-holding licensor should be inserted, the actual rights ownership for each Beat should be verified, and the agreement should be reviewed by a qualified music/copyright attorney. The business terms should also be coordinated with the website's Terms of Service, Privacy Policy, refund policy, checkout consent language, and any applicable split sheets.